

National Sports Development Act, 2020

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National Sports Development Act, 2077 (2020)

Certification Date

2077/03/11

Act Number 3 of the year 2077

An Act Made to Amend and Consolidate Laws Relating to Sports Development

Preamble: Whereas, it is desirable to amend and consolidate the prevailing laws relating to sports to prepare healthy, capable, dignified, disciplined athletes and creative citizens through sports, to promote national unity and enhance national prestige, to conduct study and research in the field of sports, and to operate and manage sports by developing, expanding, and promoting sports;

The Federal Parliament has enacted this Act. Chapter-1

Preliminary

1. Short Title and Commencement: (1) This Act shall be called the "National Sports Development Act, 2077 (2020)".

(2) This Act shall commence on the seventh day from the date of its certification. 2. Definitions: Unless the subject or context otherwise requires, in this Act,-

(a) "Chairperson" means the Chairperson of the Council.

(b) "International level athlete" means a Nepali athlete who has participated on behalf of Nepal in the Olympic, Asian, and South Asian official sports or sports organized by an international sports association or federation and world-level championships of such sports.

(c) "Vice-chairperson" means the Vice-chairperson of the Council.

(d) "Sports" means the activity of engaging in competitive activities individually or in a group through physical and mental effort and skill to achieve result-oriented accomplishments, and the term also includes prevailing professional, touristic, adventure, and traditional games.

(e) "Athlete" means a person engaged in sports.

(f) "Sports organization" means an organization relating to sports registered pursuant to prevailing law.

(g) "Prescribed" or "as prescribed" means as prescribed or as provided for in the rules made under this Act.

(h) "Council" means the National Sports Council pursuant to Section 3.

(i) "Ministry" means the Ministry of Youth and Sports of the Government of Nepal.

(j) "National level athlete" means a Nepali athlete who has participated in a national sports competition organized by the Council.

(k) "Member" means a member of the Council and the term also includes the Chairperson, Vice-chairperson, and Member-Secretary of the Council.

(l) "Member-Secretary" means the Member-Secretary of the Council pursuant to Section 17.

(m) "Committee" means the Executive Committee pursuant to Section 14.

(n) "Association" means a sports association established pursuant to Section 22 and the term also includes a national sports association or federation pursuant to Section 23. Chapter-2

Establishment of the Council and its Functions, Duties, and Powers

3.

Establishment of the Council: (1) A National Sports Council is established for the development, expansion, promotion, and study, research of sports and for the operation and management of sports. (2) The Council pursuant to sub-section (1) shall consist of the following Chairperson, Vice-chairperson, and members:- (a) Minister or Minister of State for Youth and Sports of the Government of Nepal - Chairperson (b) One person nominated by the Government of Nepal from among persons who have made a significant contribution to the field of sports - Vice-chairperson (c) Secretary of the Ministry - Member (d) Secretary of the Ministry of Education, Science and Technology of the Government of Nepal or a Joint Secretary of that Ministry designated by him/her - Member (e) Chief of the sports section of the Nepali Army - Member (f) Chief of the sports section of the Nepal Police - Member (g) Chief of the sports section of the Armed Police Force, Nepal - Member (h) One person nominated by the Chairperson from among the heads of sports departments of universities - Member (i) Chief of the Sports Division of the Ministry - Member (j) Executive head of the provincial-level institutional structure relating to sports development of each province - Member (k) Nine persons, including at least three women, nominated by the Government of Nepal from among distinguished persons who have made significant contributions to sports development, national and international former athletes, ensuring representation from all provinces and also from women, Dalit, indigenous nationalities, Khas Arya, Madhesi, Tharu, Muslim, backward region, etc.

Provided that while making nomination pursuant to this clause, at least fifty percent of the members shall be from among national and international former athletes.

(l) Two persons, including at least one woman, nominated by the Chairperson from among sports experts, sports trainers, sports technicians, or anti-doping experts - Member

(m) Two persons nominated by the Chairperson on the recommendation of the relevant committee from among the Olympic Committees recognized by the International Olympic Committee, including the Nepal Olympic Committee and the Nepal Paralympic Committee, ensuring representation from them - Member

(n) Five persons, including at least two women, nominated by the Chairperson on the recommendation of the relevant association from among the office bearers or members of the association elected pursuant to the statute of the relevant national sports association - Member

(o) One person nominated by the Chairperson on the recommendation of the Federation of Nepalese Chambers of Commerce and Industry - Member

(p) One person nominated by the Chairperson ensuring representation of traditional, adventure, and touristic

sports fields - Member

(q) Member-Secretary of the Council - Member-Secretary

(3) While making nominations of members pursuant to sub-section (2), representation shall be ensured from geographical regions and also from women, Dalit, indigenous nationalities, Khas Arya, Madhesi, Tharu, Muslim, backward region, etc. 4. Council to be an Autonomous and Corporate Body: (1) The Council shall be an autonomous and corporate body with perpetual succession.

(2) The Council shall have its own separate seal for its business.

(3) The Council may, like an individual, acquire, use, sell, or otherwise manage movable and immovable property. Provided that the Council shall obtain the approval of the Government of Nepal before selling or otherwise transferring title to immovable property.

(4) The Council may, like an individual, file or defend complaints in its own name, and complaints may also be filed against the Council in the same name.

(5) The Council may, like an individual, enter into contracts and exercise rights and fulfill obligations under contracts. 5. Patron: (1) The Prime Minister shall be the Patron of the Council.

(2) The Patron may give necessary directions to the Council, and it shall be the duty of the Council to comply with such directions. 6. Office of the Council: The office of the Council shall be located in Kathmandu Valley. 7.

Term of Office of Members: (1) The term of office of nominated members of the Council shall be four years. (2) Notwithstanding anything contained in sub-section (1), if a nominated member of the Council fails to fulfill his/her official responsibilities, does any act contrary to the interest of the Council, or does not conduct himself/herself in accordance with the position, the body or authority making the nomination may remove such member from office at any time. (3) Before removal from office pursuant to sub-section (2), the concerned member shall be given a reasonable opportunity to submit a defense. 8. Circumstances for Vacancy of Office: (1) The office of a nominated member of the Council shall be deemed vacant in the following circumstances:- (a) If he/she submits a written resignation to the Chairperson, (b) If he/she becomes a non-Nepali citizen or obtains permission for permanent residence of any foreign country, (c) If his/her age attains seventy years, Provided that the age limit pursuant to this clause shall not apply to a member pursuant to clause (n) of sub-section (2) of Section 3. (d) If he/she becomes a candidate for any public accountable position, (e) If he/she is punished for an offense relating to corruption, rape, sexual abuse, human trafficking and transportation, sale, distribution, export or import of narcotic drugs, money laundering, misuse of passport, an offense relating to abduction, organized crime, or a criminal offense involving moral turpitude, or is sentenced to imprisonment for one year or more for any other criminal offense and such verdict has become final, (f) If he/she is removed from office pursuant to sub-section (2) of Section 7, (g) If he/she is absent without notice from three consecutive meetings of the Council, (h) If it is proven that he/she, while going abroad representing the nation, absconded and later returned, (i) Upon his/her death. (2) If the office of a nominated member of the Council pursuant to sub-section (2) of Section 3 becomes vacant for any reason before the completion of his/her term, a member shall be nominated for the remaining period through the same procedure by which such member was nominated. 9.

Functions, Duties, and Powers of the Council: The functions, duties, and powers of the Council shall be as follows:- (a) To advise the Government of Nepal on policies, strategies to be adopted for sports development,

and on the operation, development, and infrastructure of sports, (b) To formulate and implement plans and programs relating to sports, subject to the policies and strategies approved by the Government of Nepal, (c) To approve the annual plan, program, and budget of the Council, (d) To prepare the human resource development and management plan and organizational structure of the Council and submit it to the Ministry, (e) To manage necessary sports materials for sports development, mobilize resources, and encourage the private sector for that purpose, (f) To organize or cause to organize national and international level sports competitions, (g) To recommend to the Ministry for setting criteria for financial and other assistance and scholarships to be provided to sports-related organizations and athletes, (h) To formulate and implement or cause to implement codes of conduct regarding matters to be observed by office bearers, members, and employees of the Council, Committee, national sports associations or federations, athletes, trainers, sports managers, referees, sports organizers, and spectators, (i) To construct, manage, and maintain or cause to construct, manage, and maintain sports infrastructure, (j) To determine minimum standards to be maintained while developing sports infrastructure and monitor or cause to monitor the same, (k) To make necessary coordination, cooperation, and collaboration with the provincial government and local level for the operation, development, and infrastructure development of sports at inter-provincial, provincial, and local levels, (l) To make regulations relating to personnel and financial administration of the Council, (m) To formulate and implement or cause to implement procedures and directives relating to sports operation, not inconsistent with this Act, (n) To initiate the establishment of training centers and academies relating to sports, (o) To recommend to the Ministry for setting standards for construction and operation of infrastructure for sports and recreation centers such as futsal, swimming pools, gyms operated by the private sector, (p) To classify sports and athletes and make necessary initiatives for the social security of athletes, (q) To make arrangements for identity cards according to the classification of athletes, (r) To make necessary coordination with Olympic Committees, (s) To conduct or cause to conduct necessary study and research for sports development. 10.

Meeting of the Council: (1) A meeting of the Council shall be held at least twice a year. (2) The meeting of the Council shall be held on such date, time, and place as specified by the Chairperson. (3) The Member-Secretary, in consultation with the Chairperson, shall send a notice including the date, time, place, and agenda of the meeting to all members at least seven days before the meeting. (4) Notwithstanding anything contained in sub-sections (2) and (3), if at least one-third of the total members of the Council make a written request to the Chairperson to convene a meeting, the Chairperson shall convene a meeting of the Council within seven days from the date of such request. (5) If at least fifty-one percent of the total members of the Council are present, the quorum for the meeting of the Council shall be deemed to be constituted. Provided that if a meeting cannot be held due to lack of quorum pursuant to this sub-section, in the meeting held immediately thereafter, if at least thirty-three percent of the members then present are present, the quorum for the meeting of the Council shall be deemed to be constituted. (6) The meeting of the Council shall be chaired by the Chairperson, and in the absence of the Chairperson, the meeting shall be chaired by the Vice-chairperson, and in their absence, by the Secretary of the Ministry. (7) The decision of the majority in a meeting of the Council shall be valid, and in the case of a tie, the person chairing the meeting shall have a casting vote. (8) The Council may invite any expert or office bearer to participate in the meeting of the Council. (9) The decision of the meeting of the Council shall be certified by the person chairing the meeting, and the Member-Secretary shall keep the records thereof safe. (10) The Chairperson, Vice-chairperson, and members shall receive meeting allowances as per the standards approved by the Ministry of Finance, Government of Nepal, for attending the meeting of the Council. (11) Other procedures relating to the meeting of the Council shall be as determined by the Council itself. 11. Functions, Duties, and Powers of the Chairperson: In addition to the functions, duties, and powers mentioned elsewhere in this Act, the functions,

duties, and powers of the Chairperson shall be as follows:- (a) To chair the meeting of the Council, (b) To lead the overall development, expansion, and promotion of sports, (c) To certify the decision of the meeting of the Council, (d) To monitor and supervise or cause to monitor and supervise the work of the Council, (e) To perform other functions as specified by the Council. 12.

Functions, Duties, and Powers of the Vice-chairperson: The functions, duties, and powers of the Vice-chairperson shall be as follows:- (a) To chair the meeting of the Council in the absence of the Chairperson, (b) To perform functions as delegated by the Chairperson, (c) To perform other functions as specified by the Council. 13. Functions, Duties, and Powers of Members: The functions, duties, and powers of members shall be as follows:- (a) To participate in the meeting of the Council, (b) To perform functions as specified by the Chairperson and the Council. Chapter-3 Formation of the Committee and its Functions, Duties, and Powers 14. Formation of the Committee: (1) To assist in the work of the Council, there shall be an Executive Committee as follows:- (a) Member-Secretary - Coordinator (b) Chief of the Sports Division of the Ministry - Member (c) Two members, including at least one woman, nominated by the Chairperson from among the members of the Council - Member (d) Two members, including at least one woman, nominated by the Council from among its members - Member (e) Chief of the Administration Division of the Council - Secretary. (2) The Committee pursuant to sub-section (1) shall be accountable to the Council. (3) The term of office of members pursuant to clauses (c) and (d) of sub-section (1) shall be for as long as they remain members of the Council. (4) Notwithstanding anything contained in sub-section (3), if a member pursuant to clauses (c) and (d) of sub-section (1) remains absent without notice from three consecutive meetings of the Committee or is unable to devote time to or effectively perform the work of the Committee, the body or authority making the nomination may at any time remove him/her from the membership of the Committee and nominate another member from among the other members of the Council as a member of the Committee pursuant to sub-section (1). (5) Before removal pursuant to sub-section (4), a reasonable opportunity to submit a defense shall be given. 15.

Functions, Duties, and Powers of the Committee: In addition to the functions, duties, and powers mentioned elsewhere in this Act, the functions, duties, and powers of the Committee shall be as follows:- (a) To prepare the annual plan, program, and budget of the Council and the sports calendar and submit them to the Council for approval, (b) To implement or cause to implement the decisions of the Council, (c) To do necessary work for organizing national and international level sports competitions and participation therein, (d) To send athletes, trainers, managers, and other representatives to participate in international level sports competitions from the resources of the Government of Nepal with the approval of the Ministry, (e) To protect, mobilize, and look after the Fund of the Council, Athletes Welfare Fund, movable and immovable property, (f) To coordinate among various bodies in the development, expansion, and operation of sports, (g) To periodically review the sports activities conducted by the Council, (h) Subject to the approved standards of the Council, to provide scholarships, financial or other assistance to sports-related organizations or athletes, (i) To conduct or cause to conduct study and research relating to sports, (j) To provide training from domestic and foreign trainers as necessary to upgrade athletes and to select suitable athletes and send them for training abroad as necessary, Provided that prior approval of the Ministry shall be obtained when bringing foreign trainers. (k) To award athletes who win medals in national and international level sports competitions and make necessary arrangements for the career development of athletes, (l) To make necessary arrangements to develop recreational, traditional, and adventure sports as sports tourism, (m) To encourage increasing private sector participation and investment opportunities in sports, (n) To conduct training programs relating to sports and to publicize or cause to publicize the utility of sports, (o) To provide necessary training to encourage the participation of persons with disabilities in sports and to organize various sports competitions for competition

among such persons, (p) To coordinate between the association, province, and local level regarding infrastructure construction, training, and organization of competitions, (q) To coordinate and collaborate with bodies or organizations related to sports of the provincial government and local level in the development and expansion of sports, (r) To send representatives to the convention of national sports associations or federations, (s) To perform or cause to perform other functions as prescribed. 16.

Meeting and Decision of the Committee: (1) A meeting of the Committee shall be held as necessary. (2) The meeting of the Committee shall be held on such date, time, and place as specified by the Coordinator. (3) The Secretary of the Committee, in consultation with the Coordinator, shall send a notice mentioning the date, time, and place of the meeting along with the agenda of the subjects to be discussed at the meeting to all members at least twenty-four hours before the meeting of the Committee. (4) If at least fifty-one percent of the total members of the Committee are present, the quorum for the Committee meeting shall be deemed to be constituted. (5) The meeting of the Committee shall be chaired by the Coordinator of the Committee. (6) The opinion of the majority in a meeting of the Committee shall be valid, and in the case of a tie, the person chairing the meeting shall have a casting vote. (7) The decision of the meeting of the Committee shall be certified and kept by the person chairing the meeting. (8) The Committee may invite any expert or office bearer to participate in the meeting of the Committee. (9) Other procedures relating to the meeting of the Committee shall be as determined by the Committee itself. Chapter-4 Relating to Member-Secretary and Employees 17.

Relating to Member-Secretary: (1) There shall be one Member-Secretary in the Council to work as the executive chief of the Council. (2) A person shall possess the following qualifications to be appointed to the post of Member-Secretary:- (a) Nepali citizen, (b) Having passed at least a bachelor's level from a university recognized by the Government of Nepal, (c) Having worked in the field of sports for at least five years, (d) Not disqualified by prevailing law, (e) Having completed thirty years of age. (3) The Ministry shall form a three-member recommendation committee consisting of the Secretary of the Ministry as Coordinator and two experts, including one woman, from the relevant field designated by the Ministry to recommend for appointment to the post of Member-Secretary from among persons fulfilling the qualifications pursuant to sub-section (2). (4) The recommendation committee pursuant to sub-section (3) shall recommend three suitable persons, including one woman, to the Ministry for appointment as Member-Secretary from among persons fulfilling the qualifications pursuant to sub-section (2). (5) The procedure to be adopted while making recommendations pursuant to sub-section (4) and other procedures relating to its meeting shall be as determined by the recommendation committee itself. (6) The Ministry shall submit to the Council of Ministers, Government of Nepal, for appointing the Member-Secretary from among the persons recommended pursuant to sub-section (4). (7) The Council of Ministers, Government of Nepal, shall appoint to the post of Member-Secretary a person deemed suitable from among the persons submitted by the Ministry pursuant to sub-section (5). (8) The term of office of the Member-Secretary appointed pursuant to sub-section (7) shall be four years, and he/she may be reappointed for one more term. (9) Notwithstanding anything contained in sub-section (8), the Council of Ministers, Government of Nepal, may remove the Member-Secretary from office at any time in the following circumstances:- (a) If he/she does any act causing loss or damage to the Council, (b) If he/she fails to fulfill official responsibilities, (c) If he/she does any act contrary to this Act, or (d) If he/she does not honestly bear responsibility, his/her performance is unsatisfactory, he/she lacks efficiency, or does not conduct himself/herself according to the position, or does not comply with the directives of the Council. (10) Before removing the Member-Secretary from office pursuant to sub-section (9), he/she shall be given a reasonable opportunity to submit a defense. (11) The office of the Member-Secretary shall be deemed vacant in the following circumstances:- (a) If he/she submits a written resignation to the Chairperson,

(b) If he/she becomes a non-Nepali citizen, obtains permission for permanent residence of any foreign country, or applies for the same, (c) If his/her age attains sixty years, (d) If he/she becomes a candidate for any public accountable position filled by election, (e) If he/she is punished for an offense relating to corruption, rape, human trafficking and transportation, sale, distribution, export or import of narcotic drugs, money laundering, misuse of passport, an offense relating to abduction, organized crime, or a criminal offense involving moral turpitude, or is sentenced to imprisonment for one year or more for any other criminal offense and such verdict has become final, (f) If he/she is removed from office pursuant to sub-section (9), (g) If it is proven that he/she, while going abroad representing the nation, absconded and later returned, (h) Upon his/her death. (12) Notwithstanding anything contained elsewhere in this Section, if the office of the Member-Secretary becomes vacant for any reason or if he/she is suspended for any reason, the Ministry may designate a first-class gazetted officer of the Federal Civil Service or the senior-most employee of the Council to act as Member-Secretary until another Member-Secretary is appointed or his/her suspension is revoked. (13) The remuneration, facilities, and other terms of service of the Member-Secretary shall be as prescribed.

Until the remuneration and facilities of the Member-Secretary are so prescribed, he/she shall receive remuneration and facilities as prescribed by the Government of Nepal. 18. Functions, Duties, and Powers of the Member-Secretary: In addition to the functions, duties, and powers mentioned elsewhere in this Act, the functions, duties, and powers of the Member-Secretary shall be as follows:-

- (a) To prepare the annual program, plan, and budget of the Council, get them passed by the Committee, and submit them to the meeting of the Council,
 - (b) To implement or cause to implement the decisions of the Council and the Committee,
 - (c) To monitor or cause to monitor the plans and programs conducted by the Council,
 - (d) To perform or cause to perform employee management and overall managerial and administrative work of the Council,
 - (e) To send athletes, trainers, managers, and other representatives to participate in international level sports competitions from sources other than those of the Government of Nepal and inform the Ministry thereof,
 - (f) To make necessary coordination with the Ministry, national sports associations or federations,
 - (g) To perform work relating to public procurement of the Council,
 - (h) To protect or cause to protect the movable and immovable property of the Council,
 - (i) To act or cause to act as the accounting responsible officer,
 - (j) To perform other functions as prescribed.
19. Relating to Employees: (1) The organizational structure and management survey report relating to employees required for the Council shall be as approved by the Council of Ministers, Government of Nepal.

(2) The posts, qualifications, remuneration, terms and conditions of service and facilities of employees in the Council, and provisions relating to employee associations shall be as mentioned in the Employees Administration Regulations of the Council.

(3) If required employees are not immediately appointed in the Council, or if any post becomes vacant for any reason and cannot be filled immediately, the Ministry may assign any employee of the Federal Civil Service to work in the Council until the post is filled.

(4) If any work to be performed by the Council cannot be performed by its own manpower, stating the reason therefor, the services of experts or technicians may be consulted pursuant to prevailing federal law.

(5) A contributory retirement scheme may be implemented for employees appointed in the Council.

(6) The Government of Nepal may, within one year from the date of commencement of this Act, adjust permanent employees working in the Council once to sports structures of the federation, province, and local level.

(7) Other provisions relating to adjustment pursuant to sub-section (6) shall be as prescribed. Chapter-5
Fund of the Council

20.

Fund of the Council: (1) The Council shall have its own separate Fund. (2) The following amounts shall be credited to the Fund pursuant to sub-section (1):- (a) Amount received from the Government of Nepal, (b) Amount received as fees for sports-related training provided by the Council, (c) Donation amount received from any person or association, organization, (d) Donation amount received from foreign governments, international associations, organizations, or persons, (e) Amount received on account of registration and renewal of national sports associations and Olympic Committees. (3) Before receiving amounts pursuant to clause (d) of sub-section (2), the Council shall obtain the approval of the Ministry of Finance, Government of Nepal. (4) All expenses incurred in the name of the Council shall be borne by the Fund pursuant to sub-section (1). (5) All amounts in the Fund of the Council shall be deposited by opening an account in a bank wholly or partly owned by the Government of Nepal. (6) The account of the Fund of the Council shall be operated jointly by the Member-Secretary or an employee designated by him/her and the chief employee looking after the accounts of the Council. 21. Accounts and Audit: (1) The Council shall maintain accounts of its income and expenditure in accordance with the accounting system adopted by the Government of Nepal. (2) The internal audit of the Council shall be conducted by the Office of the Comptroller and Auditor General pursuant to prevailing law, and the final audit shall be conducted by the Auditor General. (3) The Ministry may, at any time, examine or cause to examine the accounts related documents and other cash and store of the Council. Chapter-6 Relating to Formation and Registration of Associations 22.

Sports Association May Be Established: (1) After the commencement of this Act, sports organizations at the national, provincial, and local levels may establish sports associations at the federation, province, and local level pursuant to prevailing law. (2) While establishing a sports association pursuant to sub-section (1), the following criteria must be fulfilled:- (a) Only one sports association shall be formed for one sport, (b) The statute of the sports association must contain a provision that the same person cannot be an office bearer of more than one sports association at the same time, (c) The statute of the sports association must contain provisions for the election of office bearers and members of the sports association every four years according to democratic methods and for the audit of the income and expenditure of the association every year pursuant to prevailing law, (d) There must be a provision for the application of a code of conduct for office bearers and athletes of the sports association, (e) Other criteria as prescribed must be fulfilled. (3) Sports associations or organizations formed pursuant to sub-section (1) shall be autonomous. (4) The term of office of office bearers and members of sports associations formed pursuant to sub-section (1) shall be four years, and office bearers of the sports association may generally be elected for the same post for one additional term. Explanation: For the purpose of this Section, "office bearers of sports association" means the Chairperson, Vice-chairperson, General Secretary, Secretary, and Treasurer of the association. (5) The following persons shall not be eligible to be elected or nominated to a sports association:- (a) Non-Nepali

citizen, (b) Proven to have embezzled revenue, public, or government property, (c) Having outstanding irregularities of amounts taken from the Council, (d) Being an employee or trainer of the Council, (e) Punished for an offense relating to corruption, rape, human trafficking and transportation, sale, distribution, export or import of narcotic drugs, money laundering, misuse of passport, an offense relating to abduction, organized crime, or a criminal offense involving moral turpitude, or sentenced to imprisonment for one year or more for any other criminal offense and such verdict has become final, (f) Proven to have absconded while going abroad representing the nation and later returned, (g) Proven to have sexually abused an athlete. 23.

Formation of National Sports Association or Federation: (1) Sports associations of at least four provinces may come together to form a national sports association or federation. (2) Notwithstanding anything contained in sub-section (1), national sports associations or federations formed pursuant to prevailing law prior to the commencement of this Act shall be deemed to have been formed under this Act, and such national sports associations or federations shall form provincial sports associations in at least four provinces within two years from the date of commencement of this Act. Provided that if it is not possible to form provincial sports associations pursuant to this sub-section due to geographical reasons, provincial sports associations may be formed as prescribed. 24. Formation of Sports Associations and Construction of Sports Structures at Province and Local Level: (1) Sports associations of at least five or more districts may come together to form a provincial sports association pursuant to provincial law. (2) The provincial government may construct a sports-related structure as provided in provincial law to develop, expand, promote, operate, and manage sports at the provincial level. (3) The provincial government may form a district sports development committee in each district to systematize and coordinate sports at the local level and to operate and develop sports at the district level. (4) A local level may, pursuant to local law, operate sports activities and register sports organizations within its area. (5) A local level may construct a structure as provided in local law to perform functions relating to the operation, promotion, and development of sports at the local level. (6) While forming or registering a sports association at the province or local level pursuant to this Section, if there is a national sports association or federation for the concerned sport, permission from such association or federation shall be obtained. 25. Involvement in Association: (1) The incumbent Member-Secretary, employees, and trainers of the Council shall not hold any position in a sports association. (2) If the incumbent Member-Secretary, employees, and trainers of the Council are proven to hold any position in a sports association contrary to sub-section (1), such association shall not obtain validity, and such Member-Secretary, employees, and trainers shall be proceeded against pursuant to prevailing law. 26.

To Be Registered at the Council: (1) A national sports association or federation pursuant to Section 23 shall register at the Council to obtain national recognition. (2) To register at the Council pursuant to sub-section (1), an application shall be submitted to the Council along with the following documents and prescribed fee:- (a) Copy of the registration certificate of the provincial sports association, (b) Copy of the statute of the association, (c) Details including the name, surname, and address of the office bearers and members of the association, and (d) Other documents as prescribed. (3) Sports associations or federations, other than Nepal's indigenous sports, applying for registration at the Council pursuant to sub-section (2), if there is an international sports association or federation related to the same sport, such association or federation shall obtain affiliation within one year, and if affiliation is not obtained within that period, such sports association or federation shall be deemed equivalent to a local sports organization or club. (4) Upon examining the application received pursuant to sub-section (2), if such association is found suitable for registration at the Council under this Act, the Council shall register it within thirty days and issue a certificate of registration in the prescribed format. (5) While registering by the Council pursuant to sub-section (4), more than one association or federation for one sport and more than one association or federation with the same objective

or similar name shall not be registered. (6) Notwithstanding anything contained in sub-section (5), if at the time of commencement of this Act more than one sports association or federation have been formed for the same sport, the Council shall issue a notice to form a single sports association or federation and register it within three months from the date of application of this Act. (7) If a single association or federation is not formed within the period specified in the notice issued pursuant to sub-section (6), the registration of such sports associations or federations shall automatically terminate after the expiry of that period. (8) Upon examining the application received pursuant to sub-section (2), if an association is not found suitable for registration at the Council, the Council shall decide not to register and inform the concerned association accordingly. (9) The validity period of registration pursuant to sub-section (4) shall be four years. (10) Before the expiry of the period specified in sub-section (9), the concerned sports association or federation shall submit an application for renewal to the Council along with documents as prescribed.

Sports associations or federations not registered and renewed at the Council shall be deemed equivalent to local sports associations or clubs.

(11) Notwithstanding anything contained in this Section, sports associations or federations registered at the Council pursuant to prevailing law prior to the commencement of this Act shall be deemed to be registered under this Act, and such associations or federations shall not need to re-register at the Council.

(12) National sports associations, provincial sports associations, and local sports associations, while conducting sports, shall coordinate and operate in accordance with this Act and the universally accepted principles of sports prevailing at the international level.

(13) Other provisions relating to registration and renewal at the Council shall be as prescribed. 27. Approval Required for Change of Details: (1) If any detail mentioned in the registration certificate obtained pursuant to Section 26 needs to be changed, the association may submit an application to the Council stating the matter.

(2) Upon examining the application received pursuant to sub-section (1), if it appears reasonable to amend the matter mentioned in the registration certificate, the Council shall make the amendment and inform the applicant thereof. 28. Conditions to be Observed by Association: An association shall observe the following conditions:-

(a) To organize national and international sports competitions or international meetings or conferences relating to sports in Nepal with the approval of the Council,

(b) To conduct or cause to conduct sports-related programs subject to the statute of the association,

(c) To maintain accounts of its income and expenditure in the format pursuant to prevailing law,

(d) To regularly audit the annual income and expenditure of the association and make the audit report public and inform the Council with a copy thereof,

(e) The association itself must organize at least one national level competition in a year,

(f) To make available related records when the Ministry and the Council examine accounts and records,

(g) To conduct periodic elections of the office bearers of the association according to its statute,

(h) To obtain the consent of the Ministry of Finance, Government of Nepal, through the Ministry on the recommendation of the Council when receiving assistance from international associations, organizations, or persons,

(i) To send members or athletes to participate in sports competitions at the international level with the approval of the Council,

(j) To send members or athletes to participate in training, meetings, workshops, seminars, or conferences relating to sports at the international level by informing the Council.

Provided that if it involves additional financial burden to the Government of Nepal, approval of the Ministry shall be obtained.

(k) To obtain the consent of the Ministry when making agreements with any foreign associations or organizations on sports-related matters,

(l) To inform the Council of assistance received from associations, federations, or Olympic Committees related to sports,

(m) To comply with directives given or conditions determined by the Ministry, the Council, and the Committee from time to time. 29. Power to Suspend: (1) If any national sports association or federation violates any condition pursuant to Section 28, the Council may direct the concerned association to comply with such condition within a specified period.

(2) If any association does not comply with the direction given by the Council within the period pursuant to sub-section (1), the Council may suspend such association for up to three months.

(3) If the association applies for revocation of suspension having complied with the direction given pursuant to sub-section (1), the Council shall make necessary inquiry regarding the same and revoke the suspension of such association.

(4) If the suspension of an association is not revoked within the period pursuant to sub-section (2), the Council may dissolve the working committee in place in such association and form an ad-hoc working committee for such association, specifying the condition that another working committee must be elected or formed within three months.

(5) If the ad-hoc committee does not elect or form another working committee within three months pursuant to sub-section (4)

(2) The functions, duties, powers, and procedures of a sub-committee or task force formed pursuant to this section shall be as specified by the Council or the Committee at the time of forming such sub-committee or task force. 43. National Anti-Doping Agency to be established: (1) A National Anti-Doping Agency shall be established to act against the use of prohibited substances in sports.

(2) Provisions relating to the formation, functions, duties, and powers of the National Anti-Doping Agency referred to in sub-section (1) shall be as prescribed. 44. Approval of the Government of Nepal to be obtained:

(1) While entering into an agreement with a foreign government, international organization, or foreign institution or person, the Council shall obtain the consent of the Government of Nepal through the Ministry.

(2) While entering into an agreement with a foreign government, international association or organization, foreign institution or person, a national sports association or a sports-related institution or body at the province and local level, and an association shall obtain the approval of the Government of Nepal through the Council. 45.

Approval to be obtained: (1) Before organizing or conducting a national or international sports competition,

the private sector or other associations or institutions shall obtain the approval of the Council, along with the recommendation of the concerned sports association or federation. (2) The Council shall provide information referred to in sub-section (1) to the Ministry. 46. Annual report: (1) A national sports association or federation shall prepare an annual report including details of its works, activities, and income and expenditure for each year and submit it to the Council within two months from the date of expiry of such fiscal year. (2) The Council shall prepare an annual report for each year and submit it to the Ministry within three months from the date of expiry of the fiscal year. (3) In addition to other matters, the report referred to in sub-section (2) shall include details of the works accomplished by the Council during the year, achievements, expenditure incurred for such works, the status of the Council's fund and resources, problems seen in the field of sports and measures for their solution, as well as a summary of the main works, activities, income, and expenditure of each association. (4) The annual report of the Council referred to in sub-section (2) shall be submitted by the Chairperson to the Patron. (5) The Ministry shall make public the report submitted by the association or the Council pursuant to sub-section (1) or (2). 47. Sports to be conducted in a disciplined manner: The sports sector shall be a sector of fairness, neutrality, national unity, and pride. While conducting and managing it, it shall be conducted and caused to be conducted in a disciplined manner, keeping in view international standards, values and norms, and national culture and national interest. 48.

Construction of sports infrastructure: (1) The Ministry may itself construct or cause to be constructed through the Council, the maintenance of large-scale and national-level sports infrastructure as prescribed. (2) Construction of provincial-level infrastructures shall be carried out by the province, and construction of local-level infrastructures shall be carried out by the local level. (3) Partnership may be formed with the private sector, non-governmental, cooperative, and community associations and institutions as necessary for the construction, development, and conduct of competitions of sports infrastructure. (4) International investment may be permitted and encouraged in accordance with prevailing law for the construction, development of sports infrastructure, and conduct of competitions. (5) The Ministry may, upon the recommendation of the Council, prescribe standards for infrastructures constructed and operated by the private sector, non-governmental, cooperative, and community associations and institutions. (6) Other provisions relating to partnership and investment with the public-private sector, non-governmental, cooperative, and community associations and institutions in the sports sector shall be as prescribed. 49. Coordination and cooperation: (1) There shall be mutual cooperation and coordination among the federal, province, and local levels in the development and management of sports infrastructures and the conduct of competitions. All levels shall give priority when international and national sports competitions are being conducted. (2) Matters including coordination and cooperation among the federal, province, and local levels in the sports sector shall be as prescribed. 50. Athlete Welfare Fund: (1) An Athlete Welfare Fund shall be established in the Council for social security, insurance, emergency rescue, treatment, and rehabilitation of athletes and coaches. (2) The Fund referred to in sub-section (1) shall be in the form of a permanent fund. (3) Provisions relating to the operation of the Fund referred to in sub-section (1) shall be as prescribed. 51. Power to give directives: (1) The Ministry may give necessary directives to the Council on matters of sports development and improvement. (2) It shall be the duty of the Council to comply with the directives referred to in sub-section (1). 52.

Delegation of authority: (1) The Council may, as necessary, delegate some of the powers conferred upon it under this Act or the rules made under this Act to the Chairperson, Vice-Chairperson, Member, Member-Secretary, or a Committee. (2) A Committee may, as necessary, delegate some of the powers conferred upon it under this Act or the rules made under this Act to the Coordinator of the Committee, any Member, or any officer employee of the Council. (3) The Member-Secretary may, as necessary, delegate

some of the powers conferred upon him/her under this Act or the rules made under this Act to any officer employee of the Council. 53. Contact with the Government of Nepal: While contacting the Government of Nepal, the Council shall do so through the Ministry. 54. Power to make rules: The Government of Nepal may make necessary rules for the implementation of this Act. 55. Power to make regulations: (1) Subject to this Act, the Council may make regulations relating to employee administration and financial administration of the Council. (2) While making regulations pursuant to sub-section (1), on matters that impose a financial burden on the Government of Nepal, the Council shall obtain the approval of the Government of Nepal, Ministry of Finance, through the Ministry. (3) Regulations made by the Council pursuant to sub-section (1) shall come into effect after approval by the Ministry. 56. Code of conduct to be framed and implemented: (1) The Council shall frame and implement a code of conduct regarding matters to be observed by the Council, Committees, associations, office-bearers of associations, and employees of the Council, athletes, coaches, sports managers, referees, and sports organizers. (2) It shall be the duty of all concerned to observe the code of conduct referred to in sub-section (1). 57. Act implementation evaluation: The Ministry shall evaluate the impact of the implementation of this Act five years after the date of commencement of this Act. 58. Repeal and saving: (1) The Sports Development Act, 2048 (1992) is hereby repealed. (2) All actions and proceedings performed under the Sports Development Act, 2048 (1992) shall be deemed to have been performed under this Act. (3) The movable and immovable property and liabilities of the National Sports Council established under the Sports Development Act, 2048 (1992) shall vest in the Council, and the employees working in that Council shall remain as employees of the Council under this Act.